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FRESNO, CALIF.

TULARE COUNTY RESOURCE MANAGEMENT AGENCY
NOTICE OF AVAILABILITY OF DRAFT
ENVIRONMENTAL IMPACT REPORT, SCH # 2014081023

Project Title:

Draft Environmental Impact Report (DEIR) for the Plainview Wastewater System Project to allow the unincorporated community of Plainview's wastewater system connect to the City of Lindsay wastewater treatment plant. (State Clearinghouse # 2014081023).

Project Location:

Project Location area is located south of Avenue 196 and east and west of Road 196, and north of Avenue 194, southwest of the City of Lindsay, in Tulare County, California. The Project is in Section 35, Township 20 South, Range 26 East, Mount Diablo Base & Meridian.

Project Description:

The Project being evaluated in this EIR is Alternative 4 (the Preferred Alternative; and discussed in Chapter 5 Alternatives): Connection to the existing City of Lindsay wastewater treatment plant, identified by the Plainview "Wastewater System Project Feasibility Report" (PWSPFR, Feasibility Report, or Report), described in Chapter 1 - Introduction. Project components include:

The Project would result in construction of a wastewater main along Road 196 (and lift stations) which will connect to an existing City of Lindsay (City) wastewater trunk line; (approximately five miles north of Plainview) and construction of a sewer collection system through lateral collection lines in various County rights-of-ways abutting each home or business within Plainview. The wastewater main line would be constructed within the Road 196 right-of-way extending from Plainview to the City of Lindsay's sewer trunk pipeline (at the intersection of SR 65 and Road 196). Depending on precise engineering designs, between one and five lift stations or other appurtenant structures may also be required. Pipelines would be installed via open-cut trenching; trenches would be closed upon completion of construction. Roadways would be repaved/resurfaced as needed and specified by the County of Tulare.

Project Benefits:

- 1) Collect an average daily flow of approximately 130,000 mgd in domestic wastewater and transport it to the City of Lindsay wastewater treatment plant for treatment and disposal to meet the wastewater disposal requirements of existing residents, local businesses;
- 2) Reduce and/or remove the threat of potential groundwater contamination caused by seepage of wastewater from failing and improperly operating septic systems into the underground water supply in the Community and surrounding areas;
- 3) Design and construct a wastewater system capable of adequately servicing the existing land uses and planned growth within the Plainview Urban Development Boundary; and
- 4) Operate and maintain a wastewater system as affordably and cost effectively as possible for the users of the system in Plainview.

Potentially Significant Environmental Impact:

The Project's potentially significant environmental impacts include: Biological Resources, Cultural Resources, Hydrology and Water Quality, Noise, Public Services, Transportation/Traffic, Utilities,. Mitigation measures will be recommended, where feasible, to mitigate potentially significant impacts.

DEIR Availability:

A copy of the DEIR, as well as the Plainview Wastewater System – Feasibility Study, are available for review at the Tulare County Resource Management Agency, 5961 South Mooney Blvd., Visalia, CA 93277, (559) 624-7000, (Monday – Thursday: 9:00 am to 4:30 pm) and (Friday: 9:00 am to 11:00 am).

A copy of the DEIR and Feasibility Study (on disk) may be obtained and/or reviewed at the following locations:

Lindsay Branch Library - (Tuesday and Thursday: 11:00 a.m. – 5:00 p.m., 6:00 p.m. – 8:00 p.m.)
157 North Mirage Street Wednesday and Friday 9:00 a.m. – 1:00 p.m., 2:00 p.m. – 6:00 p.m.
Lindsay, California 93247

Tulare County Web Site <http://tularecounty.ca.gov/rma/index.cfm/documents-and-forms/planning-documents/environmental-planning/environmental-impact-reports/plainview-wastewater-system-project/>

Contact for More Information: Hector Guerra, Chief Environmental Planner (559) 624-7121 (para Espanol llame Jose Saenz (559) 624-7102).

The DEIR has a review period of 45 days, starting on **October 28, 2016** and ending **December 12, 2016**, which has been approved by the State of California, Office of Planning and Research. Any written comments on the DEIR should be sent to the Tulare County Resource Management Agency at the address noted above, to the attention of: Hector Guerra, Chief Environmental Planner.

After the close of the public comment review period on the DEIR established by this notice, this matter will be set for public hearing before the Tulare County Board of Supervisors at a date to be determined later. Notice of the date, time and place for such public hearing will be published and/or mailed as provided by law.

Please take notice that - pursuant to Public Resource Code Section 21177, Government Code Section 65009, and other applicable law - if you challenge the proposed action described above in court, then you may be limited to raising only those issues or objections you or someone else raised during the public comment period or the public hearing, or in written correspondence delivered to the Tulare County Resource Management Agency within the review period, or to the Planning Commission during the public hearing.

Benjamin Ruiz, Jr.,
Director, Environmental Assessment Officer

SCH #2014081023

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RWQCB-CVR
FRESNO, CALIF.

Project Title: Plainview Wastewater System Project

Lead Agency: Tulare County Resource Management Agency

Contact Person: Hector Guerra, Chief Env. Planner

Mailing Address: 5961 S. Mooney Blvd

Phone: 559-624-7121

City: Visalia

Zip: 93277-9394

County: Tulare County

Project Location: County: Tulare

City/Nearest Community: Plainview

Gross Streets: Road 196

Zip Code: _____

Lat./Long: 36° 8' 37.377" N/119° 6' 3.05"

Total Acres: _____

Assessor's Parcel No: _____ Section/Township/Range: S 35, T 20 S R 26 E MDB&M

Within 2 Miles: State Hwy: N/A Airports: N/A

Railway: N/A

School: N/A

CEQA:

- ☐ NOP
☐ Early Cons
☐ Neg Dec
☐ Mit Neg Dec
- ☒ Draft EIR
☐ Supplement/Subsequent EIR
☐ Draft EIS
Other: _____

NEPA:

- ☐ NO
☐ EA
☐ Other
☐ FONSI

Governor's Office of Planning & Research

OCT 28 2016

- ☐ Joint Document
☐ Final Document

STATE CLEARINGHOUSE

Local Action Type:

- ☐ General Plan Update
☐ General Plan Amendment
☐ General Plan Element
☐ Community Plan
- ☐ Specific Plan
☐ Master Plan
☐ Planned Unit Dev.
☐ Site Plan

- ☐ Rezone
☐ Pre-zone
☐ Use Permit
☐ Land Division (Sub.)

- ☐ Annexation
☐ Redevelopment
☐ Coastal Permit
☐ Other

Development Type:

- ☐ Residential: Units _____ Acres _____
☐ Office: Sq. ft. _____ Acres _____ Employees _____
☐ Commercial: Sq. ft. _____ Acres _____ Employees _____
☐ Industrial: Sq. ft. _____ Acres _____ Employees _____
☐ Educational: _____
☐ Recreational: _____

- ☐ Water Facilities: Type _____ MGD
☐ Transportation: Type _____
☐ Mining: Mineral _____
☐ Power: Type _____ MW
☐ Waste Treatment: Type _____ MGD
☐ Hazardous Waste: Type _____
☒ Other: Sewer collection system and main line inter-tie

Project Issues Discussed in Document:

- ☒ Aesthetic/Visual
☒ Agricultural Land
☒ Air Quality
☒ Archaeological/Historical
☒ Biological Resources
☒ Coastal Zone
☒ Drainage/Absorption
☒ Economic/Jobs
☐ Other: _____
- ☐ Fiscal
☒ Flood Plain/Flooding
☒ Forest Land/Fire Hazard
☒ Geologic/Seismic
☒ Minerals
☒ Noise
☒ Population/Housing Balance
☒ Public Services/Facilities
- ☒ Recreation/Parks
☐ Schools/Universities
☒ Septic Systems
☒ Sewer Capacity
☒ Soil Erosion/Compaction/Grading
☒ Solid/Waste
☒ Toxic/Hazardous
☒ Traffic/Circulation
- ☒ Vegetation
☒ Water Quality
☒ Water Supply/Groundwater
☒ Wetland/Riparian
☒ Wildlife
☒ Growth Inducing
☒ Land Use
☒ Cumulative Effects

Present Land Use/Zoning/General Plan Designation: - Various

Project Description (Proposed actions, location, and/or consequences).

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The Project being evaluated in this EIR is Alternative 4 (the Preferred Alternative; and discussed in Chapter 5 Alternatives): Connection to the existing City of Lindsay wastewater treatment plant, identified by the Plainview "Wastewater System Project Feasibility Report" (PWSPFR, Feasibility Report, or Report), described in Chapter 1 - Introduction. Project components include:

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State Clearinghouse Contact:

(916) 445-0613

State Review Began:

10 - 28 - 2016

SCH COMPLIANCE

12 - 12 - 2016

Project Sent to the following State Agencies

- ☒ Resources
☐ Boating & Waterways
☐ Coastal Comm
☐ Colorado Rvr Bd
☐ Conservation
☒ CDFW # 4
☐ Delta Protection Comm
☐ Cal Fire
☐ Historic Preservation
☒ Parks & Rec
☒ Central Valley Flood Prot.
☐ Bay Cons & Dev Comm.
☒ DWR
☐ OES
☐ Resources, Recycl. & Recovery
☐ CalSTA
☐ Aeronautics
☐ CHP
☒ Caltrans # 6
☐ Trans Planning

Other

- ☐ HCD
☐ Food & Agriculture

State/Consumer Svcs

- ☐ General Services
☐ Cal EPA
☐ ARB: Airport & Freight
☐ ARB: Transportation Projects
☐ ARB: Major Industrial/Energy
☒ SWRCB: Div. of Drinking Water
☒ SWRCB: Div. Drinking Wtr # 21
☒ SWRCB: Div. Financial Assist.
☐ SWRCB: Wtr Quality
☐ SWRCB: Wtr Rights
☒ Reg. WQCB # 5F
☐ Toxic Sub Ctrl-CTC

Yth/Adlt Corrections

- ☐ Corrections

Independent Comm

- ☐ Energy Commission
☒ NAHC
☐ Public Utilities Comm
☐ State Lands Comm
☐ Tahoe Rgl Plan Agency

Conservancy

Other: _____

Please note State Clearinghouse Number (SCH#) on all Comments

SCH#: 2014081023

Please forward late comments directly to the Lead Agency

AQMD/APCD 37

(Resources: 10/29)

SCH #2014081023

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Contact Person: Hector Guerra, Chief Env. Planner

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Phone: 558-624-7121

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Zip: 93277-9394

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☐ Recreational: _____

Water Facilities:

Transportation:

Mining:

Power:

Waste Treatment:

Hazardous Waste:

☒ Other: Sewer collection system and main line inter-tie

Type _____ MGD

Type _____

Mineral _____

Type _____ MW

Type _____ MGD

Type _____

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☐ CalSTA
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☐ CHP
☒ Caltrans # 6
☐ Trans Planning
☐ Other
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State/Consumer Svcs

General Services

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ARB: Airport & Freight

ARB: Transportation Projects

ARB: Major Industrial/Energy

SWRCB: Div. of Drinking Water

SWRCB: Div. Drinking Wtr #21

SWRCB: Div. Financial Assist.

SWRCB: Wtr Quality

SWRCB: Wtr Rights

Reg. WQCB # 51

Toxic Sub Ctrl-CTC

Yth/Adlt Corrections

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Other:

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AQMD/APCD 37

(Resources: 10, 29)

Executive Summary

This Draft Environmental Impact Report (DEIR) concludes that the proposed Plainview Wastewater System Project (“Project” or “Proposed Project”) would result in ***No Substantial Impact*** on the environment. The Project would be to construct a wastewater main along Road 196 (and lift stations) which will connect to an existing City of Lindsay (City) wastewater trunk line; and construction of collection laterals from each home or business within Plainview. These collection lines would then inter-tie to the mainline that would deliver the wastewater to the City’s wastewater trunk line and subsequently to the City’s wastewater treatment plant approximately five miles north of Plainview.

The EIR has been prepared consistent with the California Environmental Quality Act (CEQA). Its intent is to inform the public and the Tulare County Board of Supervisors of the potential environmental impacts the proposed Project could have on resources as specified in the CEQA Guidelines. This EIR, in its entirety, addresses and discloses potential environmental effects associated with construction and operation of the proposed Project, including direct, indirect, and cumulative impacts in the following resource areas:

Aesthetics	Agriculture and Forestry Resources
Air Quality	Biological Resources
Cultural Resources	Geology and Soils
Greenhouse Gas Emissions	Hazards and Hazardous Materials
Hydrology and Water Quality	Land Use and Planning
Mineral Resources	Noise
Population and Housing	Public Services
Recreation	Transportation/Traffic
Utilities-and Service Systems	Mandatory Findings of Significance

Although the Mandatory Findings of Significance is not a resource per se, it is required as it essentially provides a summary conclusion of the Project’s potential on Long Term Impacts; Cumulative Impacts; and Impacts to Species, Historical Resources, and on Human Beings. It is at this discussion where the EIR concludes that there would be no significant adverse environmental impacts as a result of this Project.

The California Environmental Quality Act (CEQA) requires that local government agencies, prior to taking action on projects over which they have discretionary approval authority, consider the environmental consequences of such projects. An Environmental Impact Report (EIR) is a public disclosure document designed to provide local and state governmental agency decision makers with an objective analysis of potential environmental consequences to support informed decision-making. This EIR (State of California Clearinghouse # 2014081023) has been prepared by Tulare County in accordance with CEQA Guidelines §15120 through §15131 and §15161 regulating EIRs to evaluate the environmental consequences of the Project, to discuss alternatives to the proposed Project, and to propose mitigation measures that will offset,

minimize or avoid identified significant environmental impacts. This document focuses on issues determined to be potentially significant as discussed in the Initial Study and the public scoping process completed for this Project, as well as comments received on the Notice of Preparation (NOP) circulated by consultants Provost & Pritchard on behalf of the County of Tulare County between April 18 and May 19, 2014. On April 29, 2014, a Public Scoping Meeting was held during the 30-day NOP comment period at the Iglesia Bautista Fuente de Vida community facility at 19530 Vista Avenue, Plainview, CA to solicit input on the scope of the EIR.

PROJECT DESCRIPTION

The Project being evaluated in this EIR is Alternative 2 (the Preferred Alternative; and discussed in Chapter 4 Alternatives): Connection to the existing City of Lindsay wastewater treatment plant, identified by the Plainview "Wastewater System Project Feasibility Report" (PWSPFR, Feasibility Report, or Report), described in Chapter 1 - Introduction. Project components include:

Construction of wastewater collection laterals from each home or business within Plainview and connection to collection lines in the various County rights-of-way abutting the homes and businesses would occur. These collection lines would then inter-tie to main lines that would deliver the wastewater to the City of Lindsay wastewater treatment plant located near the intersection of State Route 65 and Avenue 236 (approximately five miles north of Plainview). The wastewater main line would be constructed within the Road 196 right-of-way extending from Plainview to the City of Lindsay's sewer trunk pipeline (at the intersection of SR 65 and Road 196). Depending on precise engineering designs, between one and five lift stations or other appurtenant structures may also be required. Pipelines would be installed via open-cut trenching; trenches would be closed upon completion of construction. Roadways would be repaved/resurfaced as needed and specified by the County of Tulare.

PROJECT LOCATION

The unincorporated community of Plainview is located within the central portion of Tulare County in California's Central Valley. The Project site is located approximately 75 miles east of the Coastal Range and approximately 10 miles west of the foothills of the Sierra Nevada Mountain Range. The topography of Plainview comprises a relatively flat, level surface with no major slopes, mountain hillsides, or bodies of water. Plainview sits at an approximate elevation of 354 feet above mean sea level.

The Project is in Section 35, Township 20 South, Range 26 East, Mount Diablo Base & Meridian of the Public Land Survey System. It can be found within the Cairns Corner United States Geological Survey (USGS) 7.5-minute topographic quadrangle.

Latitude: 36° 8' 37.377" N Longitude: -119° 8' 3.05" W

State Route (SR) 65 is approximately three miles east of Plainview, SR 99 is approximately 11 miles west, SR 190 is approximately six miles south, and SR 137 is approximately 4.5 miles north, intersecting a westbound leg of SR 65 at Cairns Corner.

Plainview is a disadvantaged community situated primarily south of Avenue 196 and east and west of Road 196 (one commercial business lies at the northwest corner of Avenue 196, and Road 196), and north of Avenue 194. The Plainview area is bound by Road 198 on the east, Avenue 194 on the south, Road 195 on the west, and generally Avenue 196 on the north.

Plainview is approximately 15 miles southeast of the City of Visalia, five miles south of the City of Lindsay, 11 miles southeast from the City of Tulare, and 6 miles northwest of the City of Porterville. Plainview is also near the unincorporated communities of Strathmore and Woodville.

PROJECT ELEMENTS

Plainview is currently served by a community water system (Plainview Mutual Water Company). Sewage disposal is provided through individual septic tank/leach line systems. The average lot size in the community is between 6,000 and 7,000 square feet. The lots sizes are below the 12,500-square-foot minimum requirement for lots served by a community water system, but with individual septic systems, and are generally too small to support an efficient septic tank/leach line system. Further, when septic systems fail, lots this small tend to lack sufficient area for a replacement system meeting modern code requirements.

According to the 2010 U.S. Census, Plainview has 224 total residential units. Of these residential units, 209 were occupied (of which 107 were owner-occupied). The two major components of the Project are generally construction of the wastewater main line within the Road 196 right-of-way extending from Plainview to the City of Lindsay's sewer trunk pipeline (and between one and five lift stations or other appurtenant structures) and construction of wastewater collection laterals from each home or business within Plainview and connection to collection lines in the various County rights-of-way abutting the homes and businesses. These collection lines would then inter-tie to the mainline leading to the City of Lindsay's trunk line.

Construction-related activities of the Project are anticipated to take place 8 hours a day for a total of 276 working days (approximately 9-12 months depending upon weather, holidays, and weekend work). It is anticipated that the Project's construction-related activities would require approximately eight (8) construction workers, depending on daily activities, resulting in an average of approximately 16 to 32 construction vehicle trips per day. Location of the pipeline will require construction activities in the middle of the road with equipment located on one side of the trench and materials and trench spoils on the other side of the trench. This will require continual traffic control around trenching activities. It is anticipated that two-way traffic will be maintained throughout most of the construction period. Construction-related activities of the Project would require temporary staging and storage areas for the materials and equipment.

Permits and approvals would require coordination with two regional agencies, Caltrans and the San Joaquin Valley Unified Air Pollution Control District (Air District). Construction within road rights-of-way would require encroachment permits from Caltrans or the County of Tulare, dependent upon the specific right-of-way in question. The Air District has regulations in place to minimize the release of criteria pollutant emissions, specifically oxides of nitrogen (NOx) and particulate matter (PM10 and PM2.5), during construction-related activities.

PROJECT OBJECTIVES & BENEFITS

Project Objectives

The following objectives are desirable if the Project is constructed as presented in the "Project Description".

Objective 1: Connection to the City of Lindsay wastewater treatment facility

Benefit: Construct a system capable of accessing the City of Lindsay wastewater treatment facility which would provide adequate on-site wastewater removal and treatment services for Plainview; (provide an average daily flow of 130,000 mgd to meet the wastewater disposal requirements of existing residents, local businesses.).

Objective 2: Abandonment of on-site septic tank/leach line systems

Benefit: Eventual abandonment of the existing individual residential on-site septic tank/leach line systems located within Plainview.

Objective 3: Beneficial Environmental Impacts

Benefit: Provide a system that has the least potential to result in adverse environmental impacts and would provide an environmental benefit by eliminating wastewater discharge from on-site system tanks into the ground.

Objective 4: Avert a stand-alone wastewater treatment facility

Benefit: Avoid construction of a stand-alone wastewater treatment facility (including percolation ponds) in Plainview. This would be the most expensive Alternative to the Project and would likely result in an economic and unaffordable hardship to Plainview's residents.

Objective 5: Protect groundwater supply

Benefit: Reduce and/or remove the threat of potential groundwater contamination caused by seepage of wastewater from failing and improperly operating septic systems into the underground water supply in the Community and the surrounding area.

Objective 6: Cost-Efficiency

Benefit: Provide the most cost-effective, safe, and reliable means to collect and treat wastewater to Title 22 standards.

Objective 7: Affordable and Effective

Benefit: Implement an as affordable fees schedule to efficiently and effectively maintain and operate the wastewater system to enhance the quality of life for Plainview residents.

Tulare County Objectives

The Project's purpose is consistent with a summary of key 2030 Tulare County General Plan Policies, 2015-2030 Tulare County Housing Element Policies, and Action Program 9 – Housing Related Infrastructure Needs as stated below:

Key General Plan Policies

Each resource-specific section of Chapter 3 contains a list of applicable General Plan Policies. Following is a summary of the 128 General Plan Policies the Project would support:

AG-1.7 Preservation of Agricultural Lands - The County shall promote the preservation of its agricultural economic base and open space resources through the implementation of resource management programs such as the Williamson Act, Rural Valley Lands Plan, Foothill Growth Management Plan or similar types of strategies and the identification of growth boundaries for all urban areas located in the County.

AG-1.10 Extension of Infrastructure into Agricultural Areas - The County shall oppose extension of urban services, such as sewer lines, water lines, or other urban infrastructure, into areas designated for agriculture use unless necessary to resolve a public health situation. Where necessary to address a public health issue, services should be located in public rights-of-way in order to prevent interference with agricultural operations and to provide ease of access for operation and maintenance. Service capacity and length of lines should be designed to prevent the conversion of agricultural lands into urban/suburban uses.

AQ-1.3 Cumulative Air Quality Impacts - The County shall require development to be located, designed, and constructed in a manner that would minimize cumulative air quality impacts. Applicants shall be required to propose alternatives as part of the State CEQA process that reduce air emissions and enhance, rather than harm, the environment.

AQ-1.4 Air Quality Land Use Compatibility - The County shall evaluate the compatibility of industrial or other developments which are likely to cause undesirable air pollution with regard to proximity to sensitive land uses, and wind direction and circulation in an effort to alleviate effects upon sensitive receptors.

AQ-1.7 Support Statewide Climate Change Solutions - The County shall monitor and support the efforts of Cal/EPA, CARB, and the SJVAPCD, under AB 32 (Health and Safety Code Section 38501 et seq.), to develop a recommended list of emission reduction strategies. As appropriate, the County will evaluate each new project under the updated General Plan to determine its consistency with the emission reduction strategies.

ERM-1.1 Protection of Rare and Endangered Species - The County shall ensure the protection of environmentally sensitive wildlife and plant life, including those species designated as rare, threatened, and/or endangered by State and/or Federal government, through compatible land use development.

ERM-1.2 Development in Environmentally Sensitive Areas - The County shall limit or modify proposed development within areas that contain sensitive habitat for special status species and direct development into less significant habitat areas. Development in natural habitats shall be controlled so as to minimize erosion and maximize beneficial vegetative growth.

PFS-3.4 Alternative Rural Wastewater Systems - The County shall consider alternative rural wastewater systems for areas outside of community UDBs and HDBs that do not have current systems or system capacity. For individual users, such systems include elevated leach fields, sand filtration systems, evapotranspiration beds, osmosis units, and holding tanks. For larger generators or groups of users, alternative systems, including communal septic tank/leach field systems, package treatment plants, lagoon systems, and land treatment, can be considered.

HS-1.2 Development Constraints - The County shall permit development only in areas where the potential danger to the health and safety of people and property can be mitigated to an acceptable level.

HS-4.4 Contamination Prevention - The County shall review new development proposals to protect soils, air quality, surface water, and groundwater from hazardous materials contamination.

WR-2.1 Protect Water Quality - All major land use and development plans shall be evaluated as to their potential to create surface and groundwater contamination hazards from point and non-point sources. The County shall confer with other appropriate agencies, as necessary, to assure adequate water quality review to prevent soil erosion; direct discharge of potentially harmful substances; ground leaching from storage of raw materials, petroleum products, or wastes; floating debris; and runoff from the site.

WR-2.2 National Pollutant Discharge Elimination System (NPDES) Enforcement - The County shall continue to support the State in monitoring and enforcing provisions to control non-point source water pollution contained in the U.S. EPA NPDES program as implemented by the Water Quality Control Board.

PFS-1.8 Funding for Service Providers - The County shall encourage special districts, including community service districts and public utility districts to:

1. Institute impact fees and assessment districts to finance improvements,
2. Take on additional responsibilities for services and facilities within their jurisdictional boundaries up to the full extent allowed under State law, and
3. Investigate feasibility of consolidating services with other districts and annexing systems in proximity to promote economies of scale, such as annexation to city systems and regional wastewater treatment systems.

PF-6.4 UDBs and Interagency Coordination - The County shall use UDBs to provide a definition of an urban area for other planning programs, such as:

1. The area within the UDB should be considered as the same area for which water and sewer system planning may be needed and to be a consideration in the determination of an area required to adequately assess the availability and sufficiency of water supplies.

HS-8.18 Construction Noise - The County shall seek to limit the potential noise impacts of construction activities by limiting construction activities to the hours of 7 am to 7pm, Monday through Saturday when construction activities are located near sensitive receptors. No construction shall occur on Sundays or national holidays without a permit from the County to minimize noise impacts associated with development near sensitive receptors.

2015-2030 Tulare County Housing Element Policies

Policy 2.21 Require all proposed housing within the development boundaries of unincorporated communities is either (1) served by community water and sewer, or (2) the physical conditions permit safe treatment of liquid waste by septic tank systems and the use of private wells.

Action Program 9 – Housing Related Infrastructure Needs

Provide vital information used for planning and development purposes, target expansion or repair of infrastructure and municipal services to areas with the most need and secure Federal and State funding for housing-related infrastructure. Provide technical assistance to PUDs, CSDs, and Mutual to fund infrastructure improvement and expansion, ensure safe and adequate water and liquid waste disposal, and have an equitable balance of fees between new and existing residents.

PFS-2.5 New Systems or Individual Wells - Where connection to a community water system is not feasible per PFS-2.4: Water Connections, service by individual wells or new community systems may be allowed if the water source meets standards for quality and quantity.

Lastly, all one hundred twenty-eight (128) Policies are listed in Chapter 7.

Project Benefits Statement

The Project will provide the following public and private benefits to Tulare County:

- 1) Collect an average daily flow of approximately 130,000 mgd in domestic wastewater and transport it to the City of Lindsay wastewater treatment plant for treatment and disposal to meet the wastewater disposal requirements of existing residents, local businesses;
- 2) Reduce and/or remove the threat of potential groundwater contamination caused by seepage of wastewater from failing and improperly operating septic systems into the underground water supply in the Community and surrounding areas;
- 3) Design and construct a wastewater system capable of adequately servicing the existing land uses and planned growth within the Plainview Urban Development Boundary; and
- 4) Operate and maintain a wastewater system as affordably and cost effectively as possible for the users of the system in Plainview.

SUMMARY OF CHAPTERS

Chapter 1 Introduction

The County of Tulare is proposing a Project for the unincorporated community of Plainview that would connect to the existing City of Lindsay wastewater treatment plant, and construction of wastewater collection laterals from each home or business within Plainview. These collection lines which would then inter-tie to the mainline that would deliver the wastewater to the City's wastewater trunk line and subsequently to the City's wastewater treatment plant approximately five miles north of Plainview

The unincorporated community of Plainview is a disadvantaged community situated primarily south of Avenue 196 and east and west of Road 196, and north of Avenue 194. Plainview has 224 total residential units; however, in 2010, there were 209 occupied residential units. Plainview is currently served by a community water system. Sewage disposal is provided through individual septic tank/leach line systems.

The Project is in Section 35, Township 20 South, Range 26 East, Mount Diablo Base & Meridian of the Public Land Survey System. Plainview contains a mixture of residential, neighborhood commercial, religious establishments, and limited industrial areas. Plainview has paved roads that provide adequate circulation within all areas of the community. These areas are zoned by the County as R-A (Rural Residential Zone). A few parcels are zoned A-1 (Agriculture Zone), C-1 (Neighborhood Commercial Zone), and M-1 (Light Manufacturing Zone).

Local Regulatory Context: The Tulare County General Plan Update 2030 was adopted on August 28, 2012. As part of the General Plan, an EIR and background report were prepared. The General Plan background report contained contextual environmental analysis for the General Plan. The 2015 -2023 Tulare County Housing Element was adopted on November 17, 2015, and certified by State of California Department of Housing and Community Development on December 9,

2015.

Identification of Potentially Significant Impacts: Indicates that the EIR must identify potentially significant impacts consistent with CEQA Guidelines Section 15002 (h).

Consideration of Significant Impacts: Indicates that the EIR must consider significant impacts consistent with CEQA Guidelines Section 15126.2.

Mitigation Measures: Indicates that the EIR is required to contain mitigation measures consistent with CEQA Guidelines Section 15126.4.

Environmental Review Process: Summarizes steps taken prior to release of the draft EIR such as the Notice of Preparation, Scoping Meeting, and comments received from persons and/or agencies in response to the Notice of Preparation.

Chapter 2 Project Description, Objectives, and Environmental Setting

As noted earlier, the County of Tulare is proposing a Project for the unincorporated community of Plainview that would connect to the existing City of Lindsay wastewater treatment plant, and construction of wastewater collection laterals from each home or business within Plainview, and connection to collection lines which would then inter-tie to mainline that would deliver the wastewater to the City of Lindsay wastewater treatment plant. The Project area is zoned R-A (Rural Residential Zone). A few parcels are zoned A-1 (Agriculture Zone), C-1 (Neighborhood Commercial Zone), and M-1 (Light Manufacturing Zone). The Project site is not located on Williamson Act-contracted land.

In summary, Chapter 2 contains the following:

- Project Location: south of Avenue 196 and east and west of Road 196, and north of Avenue 194, southwest of the City of Lindsay, in Tulare County, California.
- Vicinity of Project Site: Generally, in the northern quadrant of southwest Tulare County, as shown in Figure 2-1.
- Surrounding Land Uses: Predominantly Agriculture.
- Project Setting (baseline conditions information pertinent to the proposed Project) : Describes the existing septic tank/leach field systems, community water supply, existing water distribution system, water supply and wells, and required approvals/permits.
- Regulatory Setting: Applicable statutes, rules, regulations, standards, policies, etc. of the County of Tulare, local or special districts, utilities, and State and Federal governments.
- Project Objectives: (See page ES-4 and Chapter 2, pages 2-6 and 2-7)

Chapter 3 Impact Analysis of Resources

The CEQA Guidelines include a Checklist of resources that must be addressed in an EIR. These resources are listed on page ES-1. There are 17 specific Resources and Mandatory Findings of

Significance discussed in detail in Chapter 3. The Resources are discussed in separate sections of Chapter 3 and each section is structured as follows:

- Summary of Findings;
- Introduction, including Thresholds of Significance;
- Environmental Settings;
- Regulatory Settings such as applicable Federal, State, and Local laws, statutes, rules, regulations, and policies;
- Impact Evaluation including Project Impacts, Cumulative Impacts, Mitigation Measures, and Conclusion;
- Definitions and Acronyms; and
- References.

Some resources required expertise to evaluate the Project's potential for impacts. As such, qualified experts prepared studies, evaluations, assessments, modeling, etc. (studies) to quantify and/or qualify potential resource impacts. The studies are contained in Appendices "A" through "H". Among the studies were air quality and greenhouses gases (Appendix "A"); biological (Appendix "B"), cultural (that is, archaeological, historical, and cultural resources; Appendix "C"); geology and soils evaluation (Appendix "D"); water quality report (Appendix "E"); custom soils report (Appendix "F"); Plainview "Wastewater System Project Feasibility Report" (Appendix "G"); and Notice of Preparation and Public Scoping Meeting, and Agency Comment Letters Received (Appendix "H").

Chapter 4 Summary of Cumulative Impacts

A critically important component of an EIR is the Cumulative Impacts discussion. Chapter 4 discusses a Cumulative Impact Analysis under CEQA. Including Past, Present, Probable Future Projects; and a Summary of Cumulative Impacts. Whereas a project in and of itself may not result in an adverse environmental impact, its cumulative effects may. Therefore the CEQA Guidelines require a discussion of cumulative impacts per Section 15130. The Discussion of Cumulative Impacts defines cumulative impacts per Section 15355 - "Cumulative impacts" refers to two or more individual effects which, when considered together, are considerable or which compound or increase other environmental impacts.

With the exception of Air Quality, Greenhouse Gas Emissions, Biological, and Hydrological Resources, Chapter 4 defines Tulare County as the geographic extent of the impact analysis. The geographic area is considered the appropriate extent because:

- 1) The proposed Project is geographically located in Tulare County and the County of Tulare is the Lead Agency; and
- 2) Tulare County General Plan policies apply to the proposed Project.

The basis for the other Resource-specific cumulative impact analyses includes:

- Land Use Impacts are based on the County of Tulare 2030 General Plan;

- Air Quality and Greenhouse Gas Emissions are based on the San Joaquin Valley Air Basin;
- Mandatory Findings of Significance are based on the San Joaquin Valley, the state of California, and the western United States;
- Biological Resources are based on the San Joaquin Valley, the state of California, and the western United States; and
- Hydrology is based on the Tulare County, the Tulare Lake Basin, and, the Tule Lake Sub-basin aquifers.

The Summary of Cumulative Impacts section discusses mitigable and unmitigable impacts. Checklist Item criteria that would result in no impacts or less than significant impacts are discussed in the Chapter 3 and are not reiterated in Chapter 4. As noted in Chapter 4, there are no Significant and Unavoidable Impacts; and Less Than Significant Impacts With Mitigation are summarized in Table 4-3 (Checklist Items with Less than Significant with Mitigation). There are a number of cumulative impacts that do not need mitigation; these impacts are listed in Table 4-4 (Checklist Items with Less Than Significant Impacts). Chapter 8 contains a complete list of Mitigation Measures to be implemented as part of the proposed Project. Chapter 4 also contains a No Impacts summary in Table 4-5 (Checklist Items with No Impacts).

Chapter 5 Alternatives

CEQA Guidelines Section 15126.6 requires that a reasonable range of Alternatives to the proposed Project be discussed in the EIR. The proposed Project site is the superior location. The conclusion contained in Chapter 5 is based on the criteria established for the site, an evaluation of a reasonable potential site, and the four reasonable Alternatives. The four Alternatives evaluated are:

- Alternative 1: No Build/No Project
- Alternative 2: On-site Systems with Implementation of a Septic Tank Maintenance District
- Alternative 3: Gravity Collection System with conventional treatment (Plainview)
- Alternative 4: Gravity Collection System and pumping to a nearby entity (City of Lindsay)

The proposed Alternatives were analyzed based on five evaluation criteria which include each of the objectives of the Project and the assessment of the potential environmental impacts. Each Alternative considered did not meet all the evaluation criteria, as identified in Table 5-2 (Alternatives Evaluation), contained in Chapter 5. The following is a summary of the Alternatives contained in the Plainview Wastewater System Project Feasibility Report (Appendix "F" of this DEIR):

Alternative 1: No Build/No Project

Proceeding with No Project "...results in a continuation of the existing conditions, which includes surfacing of effluent and diversion of grey water to the yards of the residential

properties. Surfacing of the effluent and frequent pumping of the septic tanks are clear indications of pending failure of the on-site systems.”¹

This Alternative, by definition, would not meet the objectives of the proposed Project.

Alternative 2: On-site Systems with Implementation of a Septic Tank Maintenance District.

“Formation of a Septic Tank Maintenance District would provide for some mitigation of failing septic tank systems through pumping and rehabilitation if appropriate. However, the reliance upon on-site systems in an area with soils that are not favorable to on-site systems and small residential lots would not be changed.”²

Alternative 3: Gravity Collection System with conventional treatment (that is, a new wastewater treatment facility in Plainview).

“Gravity collection of sanitary sewage and pumping to a local wastewater treatment and disposal facility was evaluated. Gravity collection of sanitary sewage and pumping to a local wastewater treatment and disposal facility was evaluated. Disposal of treated effluent would be provided through evaporation/percolation ponds and potentially supplemented with recycling effluent for agricultural irrigation. A political entity serving the community of Plainview would be responsible to operate and maintain the gravity collection system within Plainview and the facilities conveying sanitary sewage to the local wastewater treatment and disposal facilities. The political entity serving the community of Plainview would also be responsible to acquire property, construct, obtain necessary permits, operate, and maintain a new wastewater treatment and disposal facility to serve the community of Plainview.”³

Alternative 4: Alternative No. 4. Gravity Collection System and pumping to a nearby entity (that is, connection to City of Lindsay, or Strathmore Public Utility District, or Woodville Farm Labor Center, or Woodville Public Utility District). (City of Lindsay is Preferred Alternative)

In summary, Strathmore Public Utility District and Woodville Farm Labor Center were not willing to participate in an evaluation to receive sanitary sewer flows from Plainview and were dismissed as viable Alternatives. “The alternative of pumping to the City of Lindsay wastewater treatment system requires a pumping system to convey the sanitary sewage approximately 4 miles from Plainview, whereas the alternative of pumping to the Woodville PUD requires a pumping system to convey the sanitary sewage approximately 7 miles from Plainview. The Woodville PUD alternative requires crossing the Tule River and several canals. In addition, the Woodville PUD alternative likely requires construction of a new wastewater treatment facility to serve the Woodville PUD. The evaluation also considered a pumping system of multiple lift stations to gravity sewers in comparison to a single lift station and a long force main. The alternative of utilizing a single lift station and pumping to the trunk sewer of the City of Lindsay is the most cost effective alternative. A political entity

¹ Plainview Wastewater System Project Feasibility Report. Page 49.

² Ibid. 49-50.

³ Op. Cit. 49.

serving the community of Plainview would be responsible to operate and maintain the gravity collection system within Plainview and the lift station and force main facilities conveying sanitary sewage to the City of Lindsay trunk line. The political entity serving the community of Plainview would be a customer of the City of Lindsay and would provide the means of the community of Plainview to participate financially in the operation and maintenance of the City of Lindsay wastewater treatment and disposal facilities.”⁴

As discussed in Alternatives 1 through 4, each of the Alternatives could result in more adverse environmental impacts as specified on the CEQA resources checklist. Therefore, the proposed Project is the environmentally superior alternative. Further, as indicated in the Report; “The recommended governance alternative is for “...the local ownership and governance by the Plainview Mutual Water Company. This recommendation is based upon various factors, including the Mutual Water Company’s ability to provide the requisite service(s) and the local control of the Plainview sewer system.”⁵ This recommendation is based upon the statement contained in the Report, to wit; “The Plainview Mutual Water Company is an established entity with history of regular board membership and understanding of public process. The option provided by the Plainview Water Mutual is preferred by the County of Tulare rather than forming a new Community Services District since this PWM already has a financial history and would not require a new board membership. The County of Tulare believes the Plainview Mutual Water Company will be more responsible than a newly formed CSD.”⁶

Chapter 6 Economic, Social, & Growth Inducing Impacts

This Chapter discusses the Economic, Social, and Growth Inducing effects of the Project. It contains Table 6-1 which provides the CEQA requirements and a summary of the impact analysis as follows:

- Economic Effects - The proposed Project will not result in negative impacts to the region. It may result in an increase in economic benefits to the region since the Project consists of the quarrying of aggregates for road base and concrete mixing. That will meet demand.
- Social Effects - The Project will not result in a disproportionate effect on minority populations, low income populations, or Native Americans. The proposed Project would not create nor pose any adverse environmental justice issues.
- Growth Inducing Effects - The Project will not result in significant growth inducing impacts, as it will not result in significant new permanent jobs. Therefore, the Project does not need to rely on the available housing stock to accommodate permanent employees associated with the Project. The Project will not result in new housing; therefore growth inducing impacts will be less than significant.

⁴ Op. Cit.

⁵ Op. Cit. 73.

⁶ Op. Cit. 4.

The overall conclusion contained in Chapter 6 is implementation of the proposed Project will result in *Less Than Significant* environmental impacts, either individually or cumulatively, caused by either economic, social, or growth inducing effects.

Chapter 7 Unmitigable Impacts

This discussion provides determinations consistent with CEQA Guidelines Sections 15126.2 (b) Environmental Effects That Cannot Be Avoided, 15126.2 (c) Irreversible Impacts, and Statement of Overriding Considerations.

This Project will not result in significant and unavoidable impacts. All impacts have been found to be less than significant, or have been mitigated to a level considered less than significant. Based on the analysis contained in the No Environmental Impacts That Cannot Be Avoided and the No Irreversible Impact sections contained in Chapter 7, a Statement of Overriding Considerations is not necessary. The Project's merits and objectives are discussed in the Project Description and are found to be consistent with the intent of the County of Tulare and its 2030 General Plan. As noted earlier, there are one hundred twenty-eight (128) General Plan Policies that apply to this Project. Chapter 3 of this document provides a complete list of applicable policies for the specific Resource item discussed. Thus, the Project's benefits would outweigh any unavoidable and unmitigable impacts to warrant a Statement of Overriding Considerations.

Chapter 8 Mitigation Monitoring and Reporting Program

A summary of the Mitigation Monitoring and Reporting Program is contained at the end of this Executive Summary and in its entirety in Chapter 8. CEQA Section 21081.6 requires adoption of a reporting or monitoring program for those measures placed on a project to mitigate or avoid adverse effects on the environment. The mitigation monitoring and reporting program is required to ensure compliance during a project's implementation. Consistent with CEQA requirements, the Mitigation Monitoring and Reporting Program contained in this EIR include the following elements:

- **Action and Procedure.** The mitigation measures are recorded with the action and procedure necessary to ensure compliance. In some instances, one action may be used to verify implementation of several mitigation measures.
- **Compliance and Verification.** A procedure for compliance and verification has been outlined for each action necessary. This procedure designates who will take action, what action will be taken and when, and to whom and when compliance will be reported.
- **Flexibility.** The program has been designed to be flexible. As monitoring progresses, changes to compliance procedures may be necessary based upon recommendations by those responsible for the Mitigation Monitoring and Reporting Program. As changes are made, new monitoring compliance procedures and records will be developed and incorporated into the program.

Chapter 9 EIR Preparation

Key persons from the County of Tulare and the consulting firms that contributed to preparation of the Draft Environmental Impact Report (Draft EIR) are identified.

The sitting Tulare County Board of Supervisors, Tulare County Resource Management Agency Interim Director (Benjamin Ruiz), Economic Development and Planning Branch Director (Michael Washam), Chief Environmental Planner (Hector Guerra), and Environmental Planning Division staff (Jessica Willis, Planner IV; Susan Simon, Planner III) are noted.

This EIR could not have been accomplished without the expertise of the consulting firm Provost & Pritchard Consulting Group (preparation of Administrative Draft EIR), and their sub-consultants Kamansky's Ecological Consulting (preparation of Biological Evaluation) and Petra Resource Management (preparation of a Phase I survey/Class III inventory of Cultural resources). The technical studies to support the analyses are contained herein as Appendices "A"- "H". The Plainview "Wastewater System Project Feasibility Report", prepared by Provost & Pritchard, is included as Appendix "H".

SUMMARY OF POTENTIAL IMPACTS & MITIGATION MEASURES

Table 8-1

Mitigation Monitoring and Reporting Program

Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring	Method to Verify Compliance	Verification of Compliance	
					Initials	Date
Biological Resources: <i>The Project has the potential to disturb, disrupt or displace the following species and/or their habitat which may require State and Federal wildlife agency consultation and permitting: American Badger, Brittle scale, Coast horned lizard, Earlimart orache, Evans larkspur, Hopping's blister beetle, Lesser salt scale, Small-flowering morning-glory, Molestan beetle, Morrison's blister beetle, An andrenid bee, Mountain Plover, Lost hills crownscale, San Joaquin adobe sunburst, San Joaquin kit fox, San Joaquin pocket mouse, San Joaquin tiger beetle, San Joaquin whipsnake, Subtle orache, Swainson's hawk, Western Burrowing Owl, Western spadefoot, Tiptop kangaroo rat, and tricolored blackbird. As such, Mitigation Measures 3.4-1 through 3.4-8 are listed based on resource impact (that is, Plants, Animals, and Habitat; respectively). The uniqueness of this Project is that construction-related activities will occur exclusively within previously disturbed surfaces (i.e., County and CalTrans rights of way). As such, no natural/native habitat will be substantially disturbed thereby reducing, if not eliminating, the possibility of impacts to biological resources.</i>						
Plant Species						
Impact: Twenty (20) Special Status plant species are listed in the CNDDB for the area. No Special Status plant species were detected during surveys along any of the alignments/action areas. Small patches of potentially suitable habitat exist along alternatives #2 and #3. Extreme drought may preclude detection during surveys at this time.						
Bio 3.4-1 Avoidance: Special Status plant species: No impacts to Special Status plant species are anticipated, however, small potentially suitable patches of habitat exist along Alternatives #2 and #3. As a measure to ensure that no species occur in these areas prior to construction, if either Alternatives #2 or #3 are selected, pre-construction surveys shall be required before construction. Surveys should be timed to coincide with flowering periods for	Prior to start of construction.	Once within 30 days of construction, unless pre-construction survey results in new recommendation for further study and mitigation. Then mitigation should occur as recommended following coordination	Governing Entity established for operating the Wastewater System Services.	Field survey by a qualified Biologist.		

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Plainview Wastewater System Project Feasibility Report

Table 8-1

Mitigation Monitoring and Reporting Program

Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring	Method to Verify Compliance	Verification of Compliance	
					Initials	Date
species that could occur (March-May)		with Governing Entity.				
Bio 3.4-2., Minimization (Special Status Plant Species): Because no impacts to Special Status plant species are anticipated, no minimization is required, but see Mitigation Measure 3.4-1 as well. If pre-construction surveys detect special status plant species, transplantation, project modification and/or compensation shall be employed.	Prior to construction-related activities.	As needed if special status species are detected.	Governing Entity established for operating the Wastewater System Services.	Qualified biologist.		
Bio 3.4-3. Compensation (Special Status plant species): No compensation is anticipated as part of the Alternatives. If Special Status plant species are detected during pre-construction surveys in the action areas or impact footprints, compensation for impacts shall be required to compensate for impacts.	Prior to construction-related activities.	As needed if special status species are detected.	Governing Entity established for operating the Wastewater System Services.	Qualified biologist working with USFS and/or CFW		
Bio 3.4-4. Monitoring (Special Status plant species): No monitoring is required. If pre-construction surveys detect plant species along the alignments/action areas, or impact footprints, but can be avoided, construction monitoring shall be required to ensure avoidance of those sensitive areas.	During construction-related activities.	On-going during construction-related activities	Governing Entity established for operating the Wastewater System Services.	Construction manager with oversight by qualified biologist.		
Animal Species						
Bio 3.4-5. Avoidance (Special Status Animal Species): Habitat for several Special Status animal species, including kit fox and badger, were found in the action area and the site	Prior to start of construction.	Once within 30 days of construction, unless pre-construction survey results in new	Governing Entity established for operating the Wastewater	Field survey by a qualified Biologist.		

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Table 8-1

Mitigation Monitoring and Reporting Program

Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring	Method to Verify Compliance	Verification of Compliance	
					Initials	Date
provides habitat for other protected species such as raptors (detailed below). The various Alternatives could have small, but potentially significant impacts to regional populations of these species. Impacts to all kit fox dens, potential raptor nests and other animals located along the alignments shall be avoided. Since habitat for Special Status animal species occurs on the subject property, avoidance, minimization and Mitigation Measures are warranted.		recommendation for further study and mitigation. Then mitigation should occur as recommended following coordination with Governing Entity.	System Services.			
Bio 3.4-6. Minimization (Special Status Animal Species): Minimization measures assume that some level of impact will occur (that some level of disturbance occurs). Under this approach, the Agency shall consult with DFW/USFWS. As the Agency initiates this process they can offer to perform the following measures as part of their permitting process with the agencies in order to help minimize impacts to the kit foxes, raptors and other species: • Revegetate disturbed areas with trees and grass from on the site or adjacent areas; • Conduct employee education programs to inform workers about sensitive biological resources they may encounter and what they should do to minimize potential impacts.	Implemented only if sensitive species are encountered.					
3.4-7 Monitoring (Special Status Animal Species): If pre-construction surveys detect	During construction.	As needed during construction.	Governing Entity.	Determination by qualified		

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Table 8-1

Mitigation Monitoring and Reporting Program

Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring	Method to Verify Compliance	Verification of Compliance	
					Initials	Date
listed or protected species along any of the project alternatives, while construction occurs, a biologist will need to be on-site to educate workers, monitor compliance, [ensure implementation of] best management practices and to identify and protect natural resources, including Special Status Species. The monitor will be responsible for ensuring that appropriate measures are taken to prevent disturbance of core avoidance areas. Any unauthorized take of Special Status species will be immediately reported to DFW by the monitor. The monitor will also notify the Project Coordinator who will stop work until corrective measures are implemented. The designated Project Coordinator and the designated monitor for this Project will need to be established if Agency decides to pursue mitigation and monitoring.				biologist.		
Habitat	This Mitigation Measure will be implemented only in the event of Porter Slough and the Tule River being impacted if Alternative 3 (connection to Woodville WWTP) is selected as the Project.					
3.4-8 Revegetation: The County shall revegetate disturbed areas with native plants after excavation and construction in the areas of Porter Slough and the Tule River. Planting trees in addition to native grassland species could increase the habitat value of the site if the County planted native species subsequent to construction along grasslands and waterways.	As needed.	As needed.	Governing Entity established for operating the Wastewater System Services.	Qualified biologist working with USFS and/or CFW.		

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Table 8-1
Mitigation Monitoring and Reporting Program

Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring	Method to Verify Compliance	Verification of Compliance	
					Initials	Date
The following species are appropriate for revegetation efforts near riparian areas: <i>Trees:</i> Valley oak (<i>Quercus lobata</i>) Western sycamore (<i>Plantanus racemosa</i>) Sandbar willow (<i>Salix sp</i>) Arroyo willow (<i>Salix sp.</i>) Fremont's cottonwood (<i>Populus fremontii</i>) Buttonwillow (<i>Cephalanthus occidentalis</i>) <i>Grasses and Forbs:</i> Creeping wildrye (<i>Leymus triticoides</i>) Saltgrass (<i>Distichlis spicata</i>) Alkali sacaton (<i>Sporobolus aeroides</i>) Barbar sedge (<i>Carex barbarae</i>) Gumplant (<i>Grindelia camporum</i>) Goldenrod (<i>Euthamia californica</i>) California cone flower (<i>Anemopsis californica</i>)						

Draft Environmental Impact Report
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Table 8-1

Mitigation Monitoring and Reporting Program

Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring	Method to Verify Compliance	Verification of Compliance		Remarks
					Initials	Date	
Cultural Resources:							
Cul 3.5-1 - In the event that historical, archaeological or paleontological resources are discovered during site excavation, the County shall require that grading and construction work on the Preferred/ Proposed Project site be immediately suspended until the significance of the features can be determined by a qualified archaeologist or paleontologist. In this event, the specialists shall provide recommendations for measures necessary to protect any site determined to contain or constitute an historical resource, a unique archaeological resource, or a unique paleontological resource or to undertake data recover, excavation analysis, and curation of archaeological or paleontological materials. County staff shall consider such recommendations and implement them where they are feasible in light of Project design as previously approved by the County.	During Construction	Daily or as needed throughout the construction period if suspicious resources are discovered	Governing Entity established for operating the Wastewater System Services via field evaluation of the resource finds by a qualified archaeologist	A qualified archaeologist shall document the results of field evaluation and shall recommend further actions that shall be taken to mitigate for unique resource or human remains found, consistent with all applicable laws including CEQA.			
Cul 3.5-2 - The property owner shall avoid and minimize impacts to paleontological resources. If a potentially significant paleontological resource is encountered during ground disturbing activities, all construction within a 100-foot radius of the find shall immediately cease until a qualified paleontologist determines whether the resources requires further study. The owner shall include a standard inadvertent discovery clause in every construction contract to inform contractors of this requirement. The	During Construction	Daily or as needed throughout the construction period if suspicious resources are discovered	Governing Entity established for operating the Wastewater System Services via field evaluation of the resource finds by a qualified archaeologist	A qualified archaeologist shall document the results of field evaluation and shall recommend further actions that shall be taken to mitigate for			

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Plainview Wastewater System Project Feasibility Report

Table 8-1

Mitigation Monitoring and Reporting Program

Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring	Method to Verify Compliance	Verification of Compliance		
					Initials	Date	Remarks
paleontologist shall notify the Tulare County Resource Management Agency and the project proponent of the procedures that must be followed before construction is allowed to resume at the location of the find. If the find is determined to be significant and the Tulare County Resource Management Agency determines avoidance is not feasible, the paleontologist shall design and implement a data recovery plan consistent with applicable standards. The plan shall be submitted to the Tulare County Resource Management Agency for review and approval. Upon approval, the plan shall be incorporated into the project.				unique resource or human remains found, consistent with all applicable laws including CEQA.			
Cul 3.5-3 - Consistent with Section 7050.5 of the California Health and Safety Code and (CEQA Guidelines) Section 15064.5, if human remains of Native American origin are discovered during project construction, it is necessary to comply with State laws relating to the disposition of Native American burials, which fall within the jurisdiction of the Native American Heritage Commission (Public Resources Code Sec. 5097). In the event of the accidental discovery or recognition of any human remains in any location other than a dedicated cemetery, the following steps should be taken: 1. There shall be no further excavation or disturbance of the site or any nearby	During Construction	Daily or as needed throughout the construction period if suspicious resources are discovered	Governing Entity established for operating the Wastewater System Services via field evaluation of the resource finds by a qualified archaeologist	A qualified archaeologist shall document the results of field evaluation and shall recommend further actions that shall be taken to mitigate for unique resource or human remains found, consistent with all applicable laws including			

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Table 8-1

Mitigation Monitoring and Reporting Program					
Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring	Method to Verify Compliance	Verification of Compliance Initials Date Remarks
area reasonably suspected to overlie adjacent human remains until: a. The Tulare County Coroner/Sheriff must be contacted to determine that no investigation of the cause of death is required; and b. If the coroner determines the remains to be Native American: i. The coroner shall contact the Native American Heritage Commission within 24 hours. ii. The Native American Heritage Commission shall identify the person or persons it believes to be the most likely descended from the deceased Native American. iii. The most likely descendent may make recommendations to the landowner or the person responsible for the excavation work, for means of treating or disposing of, with appropriate dignity, the human remains and any associated grave goods as provided in Public Resources Code section 5097.98, or 2. Where the following conditions occur, the landowner or his authorized representative shall rebury the Native American human remains and				CEQA.	

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Plainview Wastewater System Project Feasibility Report

Table 8-1

Mitigation Monitoring and Reporting Program

Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring	Method to Verify Compliance	Verification of Compliance	
					Initials	Date
associated grave goods with appropriate dignity on the property in a location not subject to further subsurface disturbance. a. The Native American Heritage Commission is unable to identify a most likely descendent or the most likely descendent failed to make a recommendation within 24 hours after being notified by the commission. b. The descendant fails to make a recommendation; or c. The landowner or his authorized representative rejects the recommendation of the descendent.						
Transportation/Traffic						
Trans 3.16-1 Fences, barriers, lights, flagging, guards, and signs will be installed as determined appropriate by the public agency having jurisdiction to give adequate warning to the public of the construction and of any potentially dangerous condition to be encountered as a result thereof.	During Construction activities	On-going during construction-related activities	County of Tulare/ Governing Entity established for constructing and operating the Wastewater System Services via specific contractual requirements and review of records kept by	Maintenance by contractor of documentary evidence of compliance. Such records to be provided to County of Tulare/Governing Entity upon request		

Draft Environmental Impact Report
Plainview Wastewater System Project Feasibility Report

Table 8-1

Mitigation Monitoring and Reporting Program

Mitigation Measure/Condition of Approval	When Monitoring is to Occur	Frequency of Monitoring	Agency Responsible for Monitoring contractor to document compliance	Method to Verify Compliance	Verification of Compliance		
					Initials	Date	Remarks

Summary Form for Electronic Document Submittal

Lead agencies may include 15 hardcopies of this document when submitting electronic copies of Environmental Impact Reports, Negative Declarations, Mitigated Negative Declarations, or Notices of Preparation to the State Clearinghouse (SCH). The SCH also accepts other summaries, such as EIR Executive Summaries prepared pursuant to CEQA Guidelines Section 15123. Please include one copy of the Notice of Completion Form (NOC) with your submission and attach the summary to each electronic copy of the document.

SCH #: 2014081023

Project Title: Draft Environmental Impact Report for the Plainview Wastewater System Project

Lead Agency: Tulare County Resource Management Agency

Contact Name: Hector Guerra, Chief Environmental Planner

Email: HGuerra@co.tulare.ca.us Phone Number: (559) 624-7121

Project Location: Includes all unincorporated areas within the County of Tulare

County

Project Description (Proposed actions, location, and/or consequences).

Project Location area is located south of Avenue 196 and east and west of Road 196, and north of Avenue 194, southwest of the City of Lindsay, in Tulare County, California. The Project is in Section 35, Township 20 South, Range 26 East, Mount Diablo Base & Meridian.

The Project being evaluated in this EIR is Alternative 4 (the Preferred Alternative; and discussed in Chapter 5 Alternatives): Connection to the existing City of Lindsay wastewater treatment plant, identified by the Plainview "Wastewater System Project Feasibility Report" (PWSPFR, Feasibility Report, or Report), described in Chapter 1 - Introduction. Project components include:

The Project would result in construction of a wastewater main along Road 196 (and lift stations) which will connect to an existing City of Lindsay (City) wastewater trunk line; (approximately five miles north of Plainview) and construction of a sewer collection system through lateral collection lines in various County rights-of-ways abutting each home or business within Plainview. The wastewater main line would be constructed within the Road 196 right-of-way extending from Plainview to the City of Lindsay's sewer trunk pipeline (at the intersection of SR 65 and Road 196). Depending on precise engineering designs, between one and five lift stations or other appurtenant structures may also be required. Pipelines would be installed via open-cut trenching; trenches would be closed upon completion of construction. Roadways would be repaved/resurfaced as needed and specified by the County of Tulare.

Identify the project's significant or potentially significant effects and briefly describe any proposed mitigation measures that would reduce or avoid that effect.

It is anticipated that potential environmental impacts may occur to biological resources, cultural resources, and transportation.

Proposed mitigation measures will include:

Pre-construction surveys for special status plant species.

Pre-construction surveys for special status animal species.

Address the potential of cultural resources being unearthed as a result of Project-related ground excavation

Fences, barriers, lights, flagging, guards, and signs for adequate warning to the public

If applicable, describe any of the project's areas of controversy known to the Lead Agency, including issues raised by agencies and the public.

There are no areas of controversy known to the Lead Agency

Provide a list of the responsible or trustee agencies for the project.

The responsible agencies for the project are:

Caltrans District # 6
Central Valley Flood Protection Board
Department of Conservation
California Fish & Wildlife Services Region #4
Native American Heritage Commission
Office of Historic Preservation
Central Valley Regional Water Quality Control Board Region # 5
San Joaquin Valley Air Pollution Control District
US Fish & Wildlife Services
US Army Corps of Engineers
City of Lindsay
Woodville Public Utilities District
Plainview Mutual Water Company